

The Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016

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The Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016

UNION OF INDIA

India

The Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016

Rule THE-INSOLVENCY-AND-BANKRUPTCY-APPLICATION-TO-ADJUDICATING-AUTHORITY-RULES-2016 of 2016

Published on 30 November 2016

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The Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016

Published vide Notification No. G.S.R. 1108(E), dated 30th November, 2016

Last Updated 20th March, 2019

Ministry of Corporate Affairs

G.S.R. 1108(E). - In exercise of the powers conferred by clauses (c), (d), (e) and (f) of sub-section (1) of section 239 read with sections 7, 8, 9 and 10 of the Insolvency and Bankruptcy Code, 2016 (31 of 2016), the Central Government hereby makes the following Rules, namely-

1.

Short title and commencement.

(1)

These rules may be called the Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016.

(2)

They shall come into force from the 1st day of December, 2016.

2.

Application.

- These Rules shall apply to matters relating to the corporate insolvency resolution process.

3.

Definitions.

(1)

In these Rules, unless the context otherwise requires,-

(a)

"Code" means the Insolvency and Bankruptcy Code, 2016 (31 of 2016);

(b)

"corporate insolvency resolution process" means the insolvency resolution process for corporate persons under Chapter II of Part II of the Code;

(c)

"credit information company" shall have the meaning as assigned to it under the Credit Information Companies (Regulation) Act, 2005 (30 of 2005

);

(d)

"financial contract" means a contract between a corporate debtor and a financial creditor setting out the terms of the financial debt, including the tenure of the debt, interest payable and date of repayment;

(e)

"Form" means a Form appended to these rules;

(f)

"identification number" means the limited liability partnership identification number or the corporate identity number, as the case may be, of the corporate person;

(g)

"Schedule" means the Schedule appended to these rules.

(2)

All the words and expressions used herein and not defined shall have the meanings respectively assigned to them under the Code.

4.

Application by financial creditor.

(1)

A financial creditor, either by itself or jointly, shall make an application for initiating the corporate insolvency resolution process against a corporate debtor under section 7 of the Code in Form 1, accompanied with documents and records required therein and as specified in the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016.

(2)

Where the applicant under sub-rule (1) is an assignee or transferee of a financial contract, the application shall be accompanied with a copy of the assignment or transfer agreement and other relevant documentation to demonstrate the assignment or transfer.

(3)

The applicant shall dispatch forthwith, a copy of the application filed with the Adjudicating Authority, by registered post or speed post to the registered office of the corporate debtor.

(4)

In case the application is made jointly by financial creditors, they may nominate one amongst them to act on their behalf.

5.

Demand notice by operational creditor.

(1)
An operational creditor shall deliver to the corporate debtor, the following documents, namely. -

- (a)
a demand notice in Form 3; or
(b)
a copy of an invoice attached with a notice in Form 4.

(2)
The demand notice or the copy of the invoice demanding payment referred to in sub-section (2) of section 8 of the Code, may be delivered to the corporate debtor,

- (a)
at the registered office by hand, registered post or speed post with acknowledgment due; or
(b)
by electronic mail service to a whole time director or designated partner or key managerial personnel, if any, of the corporate debtor.

(3)
A copy of demand notice or invoice demanding payment served under this rule by an operational creditor shall also be filed with an information utility, if any.

6.
Application by operational creditor.

(1)
An operational creditor, shall make an application for initiating the corporate insolvency resolution process against a corporate debtor under section 9 of the Code in Form 5, accompanied with documents and records required therein and as specified in the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016.

(2)
The applicant under sub-rule (1) shall dispatch forthwith, a copy of the application filed with the Adjudicating Authority, by registered post or speed post to the registered office of the corporate debtor.

7.
Application by corporate applicant.

(1)
A corporate applicant, shall make an application for initiating the corporate insolvency resolution process against a corporate debtor under section 10 of the Code in Form 6, accompanied with documents and records required therein and as specified in the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016.

(2)
The applicant under sub-rule(1) shall dispatch forthwith, a copy of the application filed with the Adjudicating Authority, by registered post or speed post to the registered office of the corporate debtor.

8.
Withdrawal of application.

- The Adjudicating Authority may permit withdrawal of the application made under rules 4, 6 or 7, as the case may be, on a request made by the applicant before its admission.

9.
Interim resolution professional.

(1)
The applicant, wherever he is required to propose or proposes to appoint an insolvency resolution professional, shall obtain a written communication in Form 2 from the insolvency professional for appointment as an interim resolution professional and enclose it with the application made under rules 4, 6 or 7, as the case may be.

(2)
The application under sub-rule (1) shall be accompanied by a certificate confirming the eligibility of the proposed insolvency professional for appointment as a resolution professional in accordance with the Insolvency and Bankruptcy

Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016.

10.

Filing of application and application fee.

(1)

Till such time the rules of procedure for conduct of proceedings under the Code are notified, the application made under sub-section (1) of section 7, sub-section (1) of section 9 or sub-section (1) of section 10 of the Code shall be filed before the Adjudicating Authority in accordance with rules 20, 21, 22, 23, 24 and 26 of Part III of the National Company Law Tribunal Rules, 2016.

(2)

An applicant under these rules shall immediately after becoming aware, notify the Adjudicating Authority of any winding-up petition presented against the corporate debtor.

(3)

The application shall be accompanied by such fee as specified in the Schedule.

(4)

The application and accompanying documents shall be filed in electronic form, as and when such facility is made available and as prescribed by the Adjudicating Authority:

Provided that till such facility is made available, the applicant may submit the accompanying documents, and wherever they are bulky, in electronic form, in scanned, legible portable document format in a data storage device such as a compact disc or a USB flash drive acceptable to the Adjudicating Authority.

Form 1

(See sub-rule (1) of rule 4)

[Application by Financial Creditor(S) To Initiate Corporate Insolvency Resolution Process *Under Chapter II of Part II/ Under Chapter IV of Part II of The Code]

[Substituted by Notification No. G.S.R. 222(E), dated 14.3.2019 (w.e.f. 30.11.2016).]

[*strike out whichever is not applicable]

[Substituted by Notification No. G.S.R. 222(E), dated 14.3.2019 (w.e.f. 30.11.2016).]

;

(Under section 7 of the Insolvency and Bankruptcy Code, 2016 read with Rule 4 of the Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016)

[Date]

To,

The National Company Law Tribunal

[Address]

From,

[Names and addresses of the registered offices of the financial creditors]

In the matter of [name of the corporate debtor]

Subject: Application to initiate corporate insolvency resolution process in the matter of [name of the corporate debtor] under the Insolvency and Bankruptcy Code, 2016.

Madam/Sir,

[Names of the financial creditor(s)], hereby submit this application to initiate a corporate insolvency resolution process in the matter of [name of corporate debtor]. The details for the purpose of this application are set out below:

Part-I

Particulars of

Applicant (Please Provide for each Financial Creditor making the Application)

1.

Name of financial creditor

2.

Date of incorporation of financial creditor

3.

Identification number of financial creditor

4.

Address of the registered office of the financial creditor

5.

Name and address of the person authorized to submit application on its behalf(Enclose Authorization)

6.

Name and address of person resident in India authorized to accept the service of process on its behalf(Enclose Authorization)

Part-II

Particulars of the Corporate Debtor

1.

Name of the corporate debtor

2.

Identification number of corporate debtor

3.

Date of incorporation of corporate debtor

4.

Nominal share capital and the paid-up share capital of the corporate debtor and/or details of guarantee clause as per memorandum of association (as applicable)

5.

Address of the registered office of the corporate debtor

6. [

[Inserted by Notification No. G.S.R. 222(E), dated 14.3.2019 (w.e.f. 30.11.2016).]

Details of The Corporate Debtor As Per The Notification Under Section 55 (2) of The Code –

(i) Assets And Income

(ii) Class of Creditors or Amount of Debt

(iii) Category of Corporate Person

(Where Application Is Under Chapter IV of Part II of The Code)];

Part-III

Particulars of the Proposed interim Resolution

Professional

1.

Name, address, email address and the registration number of the proposed interim resolution professional

Part-IV

Particulars of Financial Debt

1.

Total amount of debt granted date(s) of disbursement

2.

Amount claimed to be in default and the date on which the default occurred(Attach the workings for computation of amount and days of default in tabular form)

Part-V

Particulars of Financial Debt [Documents, Records and Evidence of Default]

1.

Particulars of security held, if any, the date of its creation, its estimated value as per the creditor.Attach a copy of a certificate of registration of charge issued by the

registrar of companies (if the corporate debtor is a company)

2.

Particulars of an order of a court, tribunal or arbitral panel adjudicating on the default, if any(Attach a copy of the order)

3.

Record of default with the information utility, if any(Attach a copy of such record)

4.

Details of succession certificate, or probate of a will, or letter of administration, or courtDecree (as may be applicable), under the Indian succession act, 1925 (10 of 1925)(Attach a copy)

5.

The latest and complete copy of the financial contract reflecting all amendments and waivers To Date(Attach a Copy)

6.

A Record of default as available with any credit information company(Attach a copy)

7.

Copies of entries in a bankers book in accordance with the bankers books evidence act, 1891 (18 of 1891)(Attach a Copy)

8.

List of other documents attached to this application in order to prove the existence of financial debt, the amount and date of default

I, hereby certify that, to the best of my knowledge, [name of proposed insolvency professional], is fully qualified and permitted to act as an insolvency professional in accordance with the Insolvency and Bankruptcy Code, 2016 and the associated rules and regulations.

[Name of the financial creditor] has paid the requisite fee for this application through [state means of payment] on [date].

Yours sincerely,

Signature of person authorized to act on behalf of the financial creditor

Name in block letters

Position with or in relation to the financial creditor

Address of person signing

Instructions

Please attach the following to this application:

Annex I

Copies of all documents referred to in this application.

Annex II

Written communication by the proposed interim resolution professional as set out in Form 2.

Annex III

Proof that the specified application fee has been paid.

Annex IV

Where the application is made jointly, the particulars specified in this form shall be furnished in respect of all the joint applicants along with a copy of authorization to the financial creditor to file and act on this application on behalf of all the applicants.

Form 2

(See sub-rule (1) of rule 9)

(Under rule 9 of the Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016)

Written Communication by proposed Interim Resolution Professional

[Date]

To,

The National Company Law Tribunal

[Address]

From,

[Name and address of the registered office of the proposed interim resolution professional]

In the matter of [name of the corporate debtor]

Subject: Written communication in connection with an application to initiate corporate insolvency resolution process in respect of [name of the corporate debtor]

Madam/ Sir,

I, [name of proposed interim resolution professional], an insolvency professional registered with [name of insolvency professional agency] having registration number [registration number] have been proposed as the interim resolution professional by [name of applicant financial creditor] in connection with the proposed corporate insolvency resolution process of [name of the corporate debtor].

In accordance with rule 9 of the Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016, I hereby:

(i)

agree to accept appointment as the interim resolution professional if an order admitting the present application is passed;

(ii)

state that the registration number allotted to me by the Board is [insert registration number] and that I am currently qualified to practice as an insolvency professional;

(iii)

disclose that I am currently serving as an interim resolution professional/ resolution professional/ liquidator in [insert number of proceedings] proceedings;

(iv)

certify that there are no disciplinary proceedings pending against me with the Board or [name of the insolvency professional agency he is a member of];

(v)

affirm that I am eligible to be appointed as a resolution professional in respect of the corporate debtor in accordance with the provisions of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016;

(vi)

make the following disclosures in accordance with the code of conduct for insolvency professionals as set out in the Insolvency and Bankruptcy Board of India (Insolvency Professionals) Regulations, 2016;

(Signature of the insolvency professional)

(Name in block letters)

(Name of insolvency professional entity, if applicable)

[Optional certification, if required by the applicant making an application under these Rules]

I, hereby, certify that the facts averred by the applicant in the present application are true, accurate and complete and a default has occurred in respect of the relevant corporate debtor. I have reached this conclusion based on the following facts and/ or opinion:-

[Please give details].

(Signature of the insolvency professional)

(Name in block letters)

(Name of insolvency professional entity, if applicable)

Form 3

(See clause (a) of sub-rule (1) of rule 5)

Form of Demand Notice/ Invoice Demanding Payment under the Insolvency and Bankruptcy Code, 2016
(Under rule 5 of the Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016)

[Date]

To,

[Name and address of the registered office of the corporate debtor]

From,

[Name and address of the registered office of the operational creditor]

Subject: Demand notice/ invoice demanding payment in respect of unpaid operational debt due from [corporate debtor]
under the Code.

Madam/ Sir,

1. This letter is a demand notice/invoice demanding payment of an unpaid operational debt due from [name of corporate debtor].

2. Please find particulars of the unpaid operational debt below:

Particulars of

Operational Debt

1.

Total amount of debt, details of transactions on account of which debt fell due, and the date from which such debt fell due

2.

Amount claimed to be in default and the date on which the default occurred(Attach the workings for computation of default in tabular form)

3.

Particulars of security held, if any, the date of its creation, its estimated value as per the creditor. Attach a copy of a certificate of registration of charge issued by the registrar of companies (if the corporate debtor is a company)

4.

Details of retention of title arrangements (if any) in respect of goods to which the operational debt refers

5.

Record of default with the information utility (if any)

6.

Provision of law, contract or other document under which debt has become due

7.

List of documents attached to this application in order to prove the existence of operational debt and the amount in default

3. If you dispute the existence or amount of unpaid operational debt (in default) please provide the undersigned, within ten days of the receipt of this letter, of the pendency of the suit or arbitration proceedings in relation to such dispute filed before the receipt of this letter/ notice.

4. If you believe that the debt has been repaid before the receipt of this letter, please demonstrate such repayment by sending to us, within ten days of receipt of this letter, the following:

(a)

an attested copy of the record of electronic transfer of the unpaid amount from the bank account of the corporate debtor; or

(b)

an attested copy of any record that [name of the operational creditor] has received the payment.

5. The undersigned, hereby, attaches a certificate from an information utility confirming that no record of a dispute raised in relation to the relevant operational debt has been filed by any person at any information utility. (if applicable)

6. The undersigned request you to unconditionally repay the unpaid operational debt (in default) in full within ten days

from the receipt of this letter failing which we shall initiate a corporate insolvency resolution process in respect of [name of corporate debtor].

Yours sincerely,

Signature of person authorized to act on behalf of the
operational creditor

Name in block letters

Position with or in relation to the operational creditor

Address of person signing

Instructions

1. Please serve a copy of this form on the corporate debtor, ten days in advance of filing an application under section 9 of the Code.

2. Please append a copy of such served notice to the application made by the operational creditor to the Adjudicating Authority.

Form 4

(See clause (b) of sub-rule(1) of rule 5)

Form of notice with which invoice demanding payment is to be attached

(Under Rule 5 of the Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016)

[Date]

To,

[Name and address of registered office of the corporate debtor]

From,

[Name and address of the operational creditor]

Subject: Notice attached to invoice demanding payment

Madam/ Sir,

[Name of operational creditor], hereby provides notice for repayment of the unpaid amount of INR [insert amount] that is in default as reflected in the invoice attached to this notice.

In the event you do not repay the debt due to us within ten days of receipt of this notice, we may file an application before the Adjudicating Authority for initiating a corporate insolvency resolution process under section 9 of the Code.

Yours sincerely,

Signature of person authorized to act on behalf of the
operational creditor

Name in block letters

Position with or in relation to the operational creditor

Address of person signing

Form 5

(See sub-rule (1) of rule 6)

[Application by Operational Creditor (S) To Initiate Corporate Insolvency Resolution Process *Under Chapter II of Part II/ Under Chapter IV of Part II of The Code

[Substituted by Notification No. G.S.R. 222(E), dated 14.3.2019 (w.e.f. 30.11.2016).]

[*strike out whichever is not applicable]];

(Under rule 6 of the Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016)

[Date]

To,

The National Company Law Tribunal

[Address]

From,

[Name and address for correspondence of the operational creditor]

In the matter of [name of the corporate debtor]

Subject: Application to initiate corporate insolvency resolution process in respect of [name of the corporate debtor] under the Insolvency and Bankruptcy Code, 2016.

Madam/ Sir,

[Name of the operational creditor], hereby submits this application to initiate a corporate insolvency resolution process in the case of [name of corporate debtor]. The details for the purpose of this application are set out below:

Part - I

Particulars of Applicant

1.

Name of Operational Creditor

2.

Identification Number of Operational Creditor (If any)

3.

Address For Correspondence of the Operational Creditor

Part - II

Particulars of Corporate Debtor

1.

Name of the Corporate Debtor

2.

Identification Number of Corporate Debtor

3.

Date of Incorporation of Corporate Debtor

4.

Nominal share capital and the paid-up share capital of the corporate debtor and/ or details of guarantee clause as per memorandum of association (as applicable)

5.

Address of the registered office of the Corporate Debtor

6.

Name, address and authority of person submitting application on behalf of operational creditor (Enclose Authorization)

7.

Name and address of person resident in india authorized to accept the service of process on its behalf (Enclose Authorization)

8. [

[Inserted by Notification No. G.S.R. 222(E), dated 14.3.2019 (w.e.f. 30.11.2016).]

Details of The Corporate Debtor As Per The Notification Under Section 55 (2) of The Code -

(i) Assets and Income

(ii) Class of Creditors or Amount of Debt

(iii) Category of Corporate Person

(Where Application Is Under Chapter IV of Part II of The Code)];

Part - III

Particulars of the proposed interim resolution professional [If Proposed]

1.

Name, address, email address and the registration number of the proposed insolvency professional

Part - IV

Particulars of Operational Debt

1.

Total amount of debt, details of transactions on account of which debt fell due, and the date from which such debt fell due

2.

Amount claimed to be in default and the date on which the default occurred(Attach the workings for computation of amount and dates of default in tabular form)

Part - V

Particulars of operational debt [Documents, Records and Evidence of Default]

1.

Particulars of security held, if any, the date of its creation, its estimated value as per the creditor. Attach a copy of a

certificate of registration of charge issued by the registrar of companies (if the corporate debtor is a company)

2.

Details of reservation/ retention of title arrangements (if any) in respect of goods to which the operational debt refers

3.

Particulars of an order of a court, tribunal or arbitral panel adjudicating on the default, if any(Attach a copy of the order)

4.

Record of default with the information utility, if any(Attach a copy of such record)

5.

Details of succession certificate, or probate of a will, or letter of administration, or court decree (as may be applicable), under the Indian Succession Act, 1925 (10 of 1925)(Attach a copy)

6.

Provision of law, contract or other document under which operational debt has become due

7.

A statement of bank account where deposits are made or credits received normally by the operational creditor in respect of the debt of the corporate debtor (Attach a copy)

8.

List of other documents attached to this application in order to prove the existence of operational debt and the amount in default

I, [Name of the operational creditor/ person authorized to act on behalf of the operational creditor] hereby certify that, to the best of my knowledge, [name of proposed insolvency professional], is fully qualified and permitted to act as an insolvency professional in accordance with the Code and the rules and regulations made thereunder. [Where Applicable] [Name of the operational creditor] has paid the requisite fee for this application through [state means of payment] on [date].

Yours sincerely,

Signature of person authorized to act on behalf of the operational creditor

Name in block letters

Position with or in relation to the operational creditor

Address of person signing

Instructions

Please attach the following to this application:

Annex I

Copy of the invoice/ demand notice as in Form 3 of the Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016 served on the corporate debtor.

Annex II

Copies of all documents referred to in this application.

Annex III

Copy of the relevant accounts from the banks/ financial institutions maintaining accounts of the operational creditor confirming that there is no payment of the relevant unpaid operational debt by the operational debtor, if available.

Annex IV

Affidavit in support of the application in accordance with the Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016.

Annex V

Written communication by the proposed interim resolution professional as set out in Form 2 of the Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016.

[Where Applicable]

Annex VI

Proof that the specified application fee has been paid.

Note: Where workmen/ employees are operational creditors, the application may be made either in an individual capacity or in a joint capacity by one of them who is duly authorized for the purpose.

Form 6

(See sub-rule(1) of rule 7)

[Application by Corporate Applicant To Initiate Corporate Insolvency Resolution Process *Under Chapter II of Part II/ Under Chapter IV of Part II of The Code

[Substituted by Notification No. G.S.R. 222(E), dated 14.3.2019 (w.e.f. 30.11.2016).]

[*strike out whichever is not applicable];

(Under rule 7 of the Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016)

[Date]

To,

The National Company Law Tribunal

[Address]

From,

[Name and address for correspondence of the corporate applicant]

In the matter of [name of the corporate debtor]

Subject: Application to initiate corporate insolvency resolution process in respect of [name of the corporate debtor] under the Code.

Madam/ Sir,

We, hereby submit this application to initiate a corporate insolvency resolution process in respect of [name of corporate debtor]. The details for the purpose of this application are set out below:

Part - I

Particulars of the Corporate Applicant

1.

Name, address, email address, identification number and address for communication of the corporate applicant

2.

Name address, email address, identification number and address of the registered office of corporate debtor

3.

Names and addresses of all directors, promoters, designated partners of the corporate debtor (as applicable)

4.

Date of incorporation of corporate debtor

5.

Nominal share capital and the paid-up share capital of the corporate debtor and/ or details of guarantee clause as per memorandum of association (As Applicable)

6.

Name, address and authority of person submitting application on behalf of corporate applicant(Enclose Authorization)

7.

Name and address of person resident in India authorized to accept the service of process on its behalf(Enclose Authorization)

8.

Documentation to show that the corporate applicant is authorized to initiate the corporate insolvency resolution process

9. [

[Inserted by Notification No. G.S.R. 222(E), dated 14.3.2019 (w.e.f. 30.11.2016).]

Details of The Corporate Debtor As Per The Notification Under Section 55 (2) of The Code -

(i) Assets and Income

(ii) Class of Creditors or Amount of Debt

(iii) Category of Corporate Person

(Where Application Is Under Chapter IV of Part II of The Code));

Part - II

Particulars of proposed interim resolution professional

1.

Name, address, email address and the registration number of the proposed interim resolution professional

Part - III

Particulars of Financial/ Operational Debt [Creditor wise, as applicable]

1.

Name(s) of financial/ operational creditor(s)

2.

Address of correspondence of the financial/ operational creditor(s)

3.

Total debt raised and amount in default

4.

Date when the financial/ operational debt was incurred

5.

Particulars of security held, if any, the date of its creation, its estimated value as per the creditor. Attach a copy of a certificate of registration of charge issued by the registrar of companies (if the corporate debtor is a company)

6.

Details of retention of title arrangements (if any) in respect of goods to which the operational debt refers

7.

Record of default with the information utility, if any

8.

List of documents attached to this application in order to prove the existence of financial/ operational debt and the amount in default

I, certify that, to the best of my knowledge, [name of proposed insolvency professional], is fully qualified and permitted to act as an insolvency professional in accordance with the Code and the associated rules and regulations.

[Name of the corporate applicant] has paid the requisite fee for this application through [state means of payment] on [date].

Yours sincerely

Signature of person authorized to act on behalf of the corporate applicant

Name in block letters

Position with or in relation to the corporate applicant

Address of person signing

Instructions

Please attach the following to this application:

Annex I

In case of financial debt, record of default obtained through the information utility or all documents listed in serial number 8 of part ?III of this application.

Annex II

In case of operational debt, (i) copy of invoice/ demand notice served by an operational creditor on the corporate debtor and (ii) record of default obtained through the information utility or all documents listed in serial number 8 of part-III of this application.

Annex III

Written communication by the proposed interim resolution professional as set out in Form 2 of the Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016.

Annex IV

Copy of the relevant books of accounts of the corporate debtor evidencing the default to creditors.

Annex V

Copies of audited financial statements of the corporate debtor for the last two financial years and the provisional financial statements for the current financial year made upto a date not earlier than fourteen days from the date of the application.

Annex VI

A statement of affairs made up to a date not earlier than fourteen days from the date of application including the following document, namely:-

(a)

a list of the corporate debtor's assets and liabilities, divided into such categories as are appropriate for easy identification, with estimated values assigned to each category;

(b)

in the case of any property on which a claim against the corporate debtor is wholly or partly secured, particulars of the claim and its amount, and of how and when the security was created;

(c)

the names and addresses of the financial creditors and operational creditors of the corporate debtor, with the amounts due to each of them;

(d)

particulars of any debts owed by or to the corporate debtor to or by persons connected with it;

(e)

whether any, and if so what, guarantees have been given in relation to the debts of the corporate debtor by other persons, specifying which, if any, of the guarantors is a related party to the corporate debtor and the corporate applicant; and

(f)

the names and addresses of the members and partners of the corporate debtor, as the case may be, with details of their respective shareholdings.

Annex VII

A copy of:

(a)

relevant extract of any constitutional document or shareholders' agreement that records the authority of the corporate applicant to make this application, where the corporate applicant is a member or partner of the corporate debtor; or

(b)

relevant extract of an employment agreement, constitutional document or fillings made to the Registrar of Companies confirming the authority of the corporate applicant to make this application, where the corporate applicant is an individual in charge of managing the operations and resources of the corporate debtor or has control and supervision over the financial affairs of the corporate debtor.

Annex VIII

Affidavit in support of the application in accordance with the Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016.

Annex IX

Proof that the specified application fee has been paid.

Schedule

[See sub-rule (3) of rule 10]

S. No.

Applicant

Fee payable (in Rs.)

1.

Application by financial creditor (whether solely or jointly)

25000

2.

Application by operational creditor

2000

3.

Application by corporate debtor

25000

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